

Court No. - 3

Case :- WRIT - C No. - 30385 of 2021

Petitioner :- Harendra Singh

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Dileep Kumar Singh, Yatish Kumar Dwivedi

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Syed Aftab Husain Rizvi, J.

Passed over on the request of Sri Ramesh Kumar Chaurasia holding brief of Sri Dileep Kumar Singh, learned counsel for the petitioner.

Put up as a fresh case before the appropriate bench on 08.12.2021.

In the meantime, learned counsel for the respondents may obtain instructions.

Order Date :- 30.11.2021

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Counsel for Petitioner :- Dileep Kumar Singh, Yatish Kumar Dwivedi

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Piyush Agrawal, J.

As prayed, **put up as a fresh case** before the appropriate Bench on **10.01.2022**.

Order Date :- 23.12.2021

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Petitioner :- Harendra Singh

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Dileep Kumar Singh, Yatish Kumar Dwivedi

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Vipin Chandra Dixit, J.

Heard learned counsel for the parties.

This writ petition has been filed for quashing the order dated 10.06.2021 passed by the respondent no. 4, whereby electricity dues of Rs. 4,65,757/- against one late Sri Sudama son of late Sri Bahadur for tube well electricity connection, has been directed to be recovered from the petitioner on the basis of letter of the wife of the deceased consumer Sudama that Sudama had died about 30 years ago and the tube well was being used by the petitioner herein who happens to be cousin brother of the deceased Sudama.

It is admitted by learned counsel for the respondents no. 4 and 5 that the electricity connection taken by aforesaid Sudama is the agricultural connection for the purposes of tube well. The amount of dues prima-facie indicates that the due amount is for several decades. It is quite surprising that how the respondents suddenly attempted to recover the due amount from the petitioner who is not the consumer, when the respondents found that the consumer Sudama had died about 30 years ago. Nothing has been mentioned in the impugned order for use of electricity from the aforesaid connection in the name of Sudama.

Thus, prima-facie, the impugned order dated 10.06.2021 appears to be arbitrary.

Learned counsel for the respondents no. 4 and 5 prays for little time to file short counter affidavit.

As prayed by learned counsel for the respondents no. 4 and 5, put up as a fresh case before the appropriate Bench on 25.01.2022.

Order Date :- 20.1.2022

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Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Dileep Kumar Singh, Yatish Kumar Dwivedi

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard learned counsel for the petitioner, learned standing counsel for the State-respondents and Sri Udit Chandra, learned counsel for the respondent Nos.4 and 5.

This writ petition has been filed praying for the following relief:

"I. Issue a writ, order or direction in the Certiorari quashing the recovery citation dated 02.07.2020 issued by the respondent no. 4 to respondent no.2 for recovery as well as order dated 10.06.2021 canceling the representation dated 11.02.2021 denying the grievance of the petitioner in regard to due amount with collection charge as land revenue for the petitioner, and allow the present writ petition."

Sri Udit Chandra, learned counsel for the respondent Nos.4 and 5/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his/ her objection under Para 6.5 of U.P. Electricity Supply Code, 2005 before the respondent No.4 within four weeks from today along with a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it shall be decided by the respondent No.4 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of **eight weeks** or till disposal of the objection of the petitioner, whichever is earlier, **no coercive action** shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 16.5.2022

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